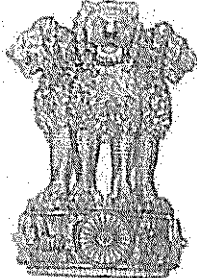


भारतीय गैर न्यायिक
भारत INDIA

₹. 500



FIVE HUNDRED
RUPEES

पाँच सौ रुपये

Rs. 500

सत्यमेव जयते

INDIA NON JUDICIAL

गोवा, GOA

7/4/49

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P. V. M. Proprietor,
Bannur.

246370

JOINT VENTURE AGREEMENT

THIS JV AGREEMENT made and entered on this 25th Day of April in the year 2014 at Panaji, Goa.



~~7-1-15~~

BETWEEN

Mr. PASCOAL TRINDADE, aged 41 years, married, businessman Indian National, son of late Agostinho Trindade holder of PAN Card No. AINDPP5891L, resident of Pastina Villa, Dona Paula, Goa and **SMT. ALBERTINA TRINDADE** also known as Albertina Rodrigues, major of age married, daughter of late Francisco Rodrigues, housewife Indian National, holder of PAN Card No. ABCPT5348K, residing at Pastina Villa, Dona Paula, Goa represented herein by her lawful attorney Mr. Pascoal Trindade, aged 41 years, married, businessman, Indian National, son of late Agostinho Trindade, resident of Pastina Villa, Dona Paula, Goa, constituted as such by a Power of Attorney executed before the Notary Public of Panaji, Wilfred A.F. Boardita under registration no. 8339/96 dated 04/12/1996 jointly having 37.85% of share in Agreement of Partnership namely M/s.PVM Associates

- (2) **MR. VIKRAM SHAH**, son of Chinnbhai Shah holder of PAN Card no. AAJPS2978N aged about 63 Years, Indian Inhabitant residing at 28, Capri, Manav Mandir Road, Walkeshwar, Mumbai, 400005 having 37.85% of share in Agreement of Partnership namely M/s.PVM Associates

- (3) **MR. MURLIDHAR SADARANGANI**, son of Shamdas Jetaram Sadarangani holder of PAN Card no. AAHPS8209A aged about 54 Years, Indian Inhabitant residing at S-3, Eden Hall, Dr. Annie Besant Road, Worli, Mumbai - 400018 having

(Signature)

24 300. A share in Agreement of Partnership namely M/s.PVM Associates hereinafter collectively jointly referred to as the VENDORS (which expression shall, unless it be repugnant to the context or meaning thereof, mean and include their respective legal heirs, successors, executors, administrators and assigns) of the FIRST PART

AND

M/s. Kuval Projects Pvt. Ltd., having its office at Pastina Building, near NIO Police Station, Dona Paula, Goa a private company incorporated under the Indian Companies Act 1956 bearing registration No.U45201GA2009PTC006113 and hereinafter referred to as THE DEVELOPERS (which expression shall, unless repugnant to the context or meaning thereof, include its directors, executors, legal representatives administrators and official assigns) OF THE SECOND PART.

AND WHEREAS there exists a property surveyed under Survey No. 93 Sub-Division No. 3 culmeasuring 26,825square metres forming part of a larger property known as "BAILEM FONDIEM" "SAVELI GALI" or "OHOR" situated at Village Bambolim, Taluka Tiswadi, Goa, and better described in **SCHEDULE-I** hereunder written and hereinafter referred to as "the SAID PROPERTY".

AND WHEREAS the SAID PROPERTY originally belonged to one Mrs. Maria Conceicao Rodrigues, widow of late Gregorio Germano Mergulhao.

AND WHEREAS the said Mr. Francisco Alexis Das Dóres Mergulhao alias Francisco Mergulhao and Manuel Luvancino Pardo Mergulhao the said Mr. Francisco Alexis Das Dóres Mergulhao expired on 12.07.1996 as a bachelor. The said Mr. Manuel Luvancino Pardo Mergulhao expired on 11.11.1999 survived by his only son namely Maximo Mergulhao.

AND WHEREAS Mr. Maximo Mergulhao alias Maximiano Mergulhao was married to Mrs. Dionisia Dias e Mergulhao alias Dionisia Dias.

AND WHEREAS Sr. Maximo Mergulhao expired on 26.03.1998 bequeathing his disposable share in all his properties by virtue of Will dated 14.05.1990 to his only son Mr. Americo Mergulhao.

AND WHEREAS the said Mrs. Dionisia Dias e Mergulhao alias Dionisia Dias, upon the demise of her late husband Maximo Mergulhao, executed the Deed of Succession dated 04.06.1998, in the capacity of an interested party, being his widow, moiety and half sharer alongwith their only son Mr. Americo Mergulhao married to Mrs. Celia Menezes being the sole and universal heirs and successors.

AND WHEREAS by virtue of the Deed of Gratuitous Relinquishment of Illiquid Rights dated 13.05.1998 the said Americo Mergulhao son of Maximo Mergulhao and his wife Celia Menezes relinquished their undefined, illiquid and undivided right, title and interest acquired by them in the estate of late father/ father-in-law, Mr. Maximo Mergulhao, thereby making their mother and mother-in-law Mrs.

Dominic Dias E Mergulhao alias Dionisio Dias E Mergulhao, the sole owner of the said Entire Property.

AND WHEREAS the SAID PROPERTY was purchased by the Mr. Pascoal Trindade for and in behalf of the VENDORS herein from the above said named Mrs. Dionisia Dias E Mergulhao alias Dionisio Dias E Mergulhao vide Deed of Sale and Conveyance dated 25.04.2006 registered in the office of the sub-Registrar of Ilhas Taluka-Goa under no. 1238 at Pages 369 to 387 Book - I Volume 1636 dated 02.03.2006.

AND WHEREAS the Conversion Sanad in respect of the SAID PROPERTY was granted vide order bearing Ref No: RB/CNV/TIS/135/2008 dated 16.12.2011 by Office of Collector North Goa, North Goa District, Panaji - Goa.

AND WHEREAS the Technical Clearance in respect of the SAID PROPERTY was granted vide order bearing Ref No: TIS/7860/BAM/TCP/13/377 dated 27.02.2013 by the Town Planner, Town & Country Planning Department, Panaji - Goa.

AND WHEREAS the No-Objection Certificate was obtained from the Health Department in terms of order bearing Ref No: UHCP/DHS/NOC/12-13/3557 dated 13.03.2013.

AND WHEREAS Mr. Pascoal Trindade has entered into and executed an Agreement of Partnership with the other VENDORS namely 1. Mr. Vikarm Shah, and 2. Mr. Murlidhar Sudarangani dated 1st April 2013 on the terms and conditions mentioned in the Said AOP Agreement under the name and style of M/s. **PVM Associates**.



AND WHEREAS the SAID PROPERTY was purchased by the Mr. Pascoal Trindade for and in behalf of the VENDORS heretofore from the vendor of name of Mrs. Dionisio, Dous E Mergulhao alias Dionisio Dias E Mergulhao vide Deed of Sale and conveyance dated 15.01.2006 registered in the office of the said Registrar of Illus Talyka Goa under no. 1738 of Pages 369 to 387 Book 1 Volume 1636 dated 02.05.2006.

AND WHEREAS the Conversion Sanad in respect of the SAID PROPERTY was granted vide order bearing Ref. No. RR/CNV/TIS/135/2008 dated 16.12.2011 by Office of Collector North Goa, North Goa District, Panaji - Goa.

AND WHEREAS the Technical Clearance in respect of the SAID PROPERTY was granted vide order bearing Ref. No. TIS/7554/BAM/TCP/13/377 dated 27.02.2013 by the Town Planner, Town & Country Planning Department, Panaji - Goa.

AND WHEREAS the No-Objection Certificate was obtained from the Health Department in terms of order bearing Ref. No. UHCP/DHS/NOC/12-13/3557 dated 13.03.2013.

AND WHEREAS Mr. Pascoal Trindade has entered into and executed an Agreement of Partnership with the other VENDORS namely 1. Mr. Vikram Shah, and 2. Mr. Murlidhar Sadarangani dated 1st April 2013 on the terms and conditions mentioned in the Said AOP Agreement under the name and style of M/s. **PVM Associates.**

AND WHEREAS construction license was granted to the Owners bearing Reference No. VP/CIT/2013-14/CONST/88 Dated 16.04.2013 by the Village Panchayat of Curra, Bambohim & Talaulim.

AND WHEREAS the VENDORS have verified and obtained a Title Search Report in respect of the SAID PROPERTY which is clear and marketable and the DEVELOPERS herein are fully satisfied that the title of the VENDORS is good, clear and marketable and that the VENDORS have full right and authority to enter into this Agreement and transfer and convey the SAID PROPERTY or any part thereof to any prospective purchasers.

AND WHEREAS the VENDORS have notionally sub-divided the SAID PROPERTY into three parts namely, Sector I, Sector II & Sector III.

AND WHEREAS the VENDORS have prepared the revised plan and proposes to construct 3 buildings each consisting of stilt plus four storey comprising of 8 flats in each building and eight villas of the SAID PROPERTY upon Sector I as more particularly shown in the plan annexed hereto at **ANNEXURE - 1**.

AND WHEREAS the list of the permissions/sanctions/NOC's etc obtain by the VENDORS as aforesaid is at **ANNEXURE - II** annexed hereto.

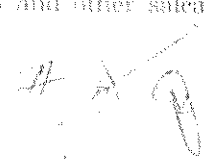
AND WHEREAS the DEVELOPERS are established and accomplished company engaged in the business for the last 30 years and have expertise and sufficient funding resources to develop the 'Project' in Sector I as envisaged herein and have expressed their intent of the same to the VENDORS

AND WHEREAS the VENDORS and the DEVELOPERS have mutually agreed that the DEVELOPERS as part of their normal business and at their own costs shall develop and construct the 'Project' upon Sector I and its infrastructure works viz. the 'Project' upon Sector I hereinafter called the "DEVELOPERS' SCOPE OF WORK" and accordingly the DEVELOPERS' SCOPE OF WORK is described hereunder written and list of the quantities and specifications to be provided for the residential buildings and the infrastructure to be developed on the NAID PROPERTY viz. the 'Project' is described in detail in **Schedule - II**.

AND WHEREAS after detailed discussion of the layout and planning of the 'Project' the VENDORS and the DEVELOPERS have mutually agreed to adopt the said revised plan for execution i.e., development and construction of the 'Project'.

AND WHEREAS according to the said revised plan the said 'Project' is comprising of 3 residential buildings consisting of stilt and 4 upper floors having 24 nos. of 3 bed rooms flats and 8 villas with required infrastructure viz. internal roads, sewage system, sub-station, street lighting, water distribution system, landscaping, etc.

AND WHEREAS the VENDORS and the DEVELOPERS hereto have mutually agreed to the terms and conditions for the DEVELOPERS executing the development and construction of the 'project' in accordance with the said "DEVELOPERS' SCOPE OF WORK" and the manner in which the gross revenues received from the sales of the units/apartments/flats in the residential buildings, villas, club membership, parking spaces and other saleable items (hereinafter



called "the saleable areas" of the "Project", shall be distributed at the point of receipt by and between them as appearing hereunder.

NOW THEREFORE THIS AGREEMENT WITNESSETH AND IT IS MUTUALLY AGREED BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS:

1. The recital hereinabove forms an integral part of the agreement hereunder.
2. This Agreement relates to the rights of the respective Parties with regard to the implementation of the "Project" upon SECTOR 1 forming part of the SAID PROPERTY which area is shown by green ink comprised in the Plan annexed hereto as **Annexure-I**.
3. The Parties herein specifically confirm that this Agreement does not constitute a partnership or association and consequently no Party shall be entitled to represent the other Party. The rights and responsibilities of the Parties are and shall be as hereinafter set out and to be mutually agreed from time to time by and between them. The Parties shall perform their respective obligations hereunder as part of their respective obligation/business and not as contractors, agents or representatives of each other.
4. The VENDORS hereby covenant and declare that:
 - a. They are seized and possessed of the SAID PROPERTY and have a clear and marketable title to the SAID PROPERTY. The relevant documents relating to title have been listed in **Schedule-III** hereunder written.

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- b. That the VENDORS are fully entitled to sell the SAID PROPERTY in accordance with the respective rights and powers conferred upon them by law.
- c. There are no mortgage charges, other encumbrances, or encumbrances created up or in relation to the SAID PROPERTY in favour of any person or party and the title of the VENDORS to the SAID PROPERTY is marketable and free from disputes, adverse claims, attachments, injunctions, negative covenants or any other prohibitory orders.
- d. They have clear and absolute irrevocable right and authority to develop the SAID PROPERTY as also to enter into this Agreement.
- e. The SAID PROPERTY is free from encumbrances and is not subject to easements, rights, charges, lien, attachments, claims, suits and demands of any nature whatsoever and that the VENDORS or anyone on their behalf has not received any injunction or restraint order from any court, authority or tribunal in regard to the development/disposal of the SAID PROPERTY or any part thereof and the VENDORS are fully entitled to enter into this Agreement with the DEVELOPERS.
- f. That there is no interference from the neighbouring owners and/or from the villagers and in case of any interference/dispute the VENDORS undertake to resolve the same at their own cost.



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g. The VENDORS shall put the DEVELOPERS in possession of the SAID PROPERTY viz. the 'Project', for the limited purpose of development on signing of this Agreement.

h. There are no drains, sewers, cables, water pipes, gas pipe, overhead wires passing through the SAID PROPERTY.

5. The DEVELOPERS hereby state and confirm that:

a. They shall appoint the Architect and other consultants as may be required for the 'Project' and their decision in all matters relating to construction and development comprised in the DEVELOPERS' SCOPE OF WORK shall be final and binding.

b. They have agreed to carry out as part of their own business activity the entire works comprised in the DEVELOPERS' SCOPE OF WORK as described in **Schedule-III** hereunder written by arranging their own finance, personnel etc. in accordance with the sanctioned plans and/or revised plan as approved by the concerned Authorities as aforesaid.

6. The 'Project' and the other works comprised in DEVELOPERS' SCOPE OF WORK shall be carried out by the DEVELOPERS in accordance with the sanctioned plans with such modifications thereto that be made by the Parties mutually and which would be subject to the approval of the concerned Authorities.

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1. The Vendors shall be bound to:

(a) To execute and cause to be executed all such documents, powers, approvals and other documents in relation to the SAID PROPERTY.

(b) To execute and cause to be executed all the necessary part of the SAID PROPERTY to and in favour of the co-operative society or any other organization formed by the prospective buyers of the said residential flats / villas in the said Project.

(c) To initiate and file such suits, petitions, memorandum for the purpose of enforcing the rights of and upon the SAID PROPERTY in so far as it relates to the title of the VENDORS to the SAID PROPERTY or defend any suit filed against them.

(d) To pay all the rents, rates, taxes, assessments, dues, cesses and other outgoings whatsoever payable in respect of the SAID PROPERTY to all concerned government, semi-government, public bodies or local authorities which have been paid upto date by the VENDORS and the VENDORS shall duly and punctually continue to pay such rates and duties, etc upto and until the handing over the SAID PROPERTY to a co-operative society save and accept all charges, pledge, penalties etc payable in respect of the development of the SAID PROPERTY viz., the 'Project' and the same shall exclusively be borne and paid by the DEVELOPERS.



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b. DEVELOPERS: are

- i. To arrange and provide the funds required for the purpose of carrying out all the works comprised in DEVELOPERS' SCOPE OF WORK as described in Schedule-III as envisaged herein.
- ii. To continue the construction and development activities at site irrespective of sales realization.
- iii. To execute the works comprised in the DEVELOPERS' SCOPE OF WORK in accordance with the sanctioned plans with the said specification and amenities.
- iv. To complete the entire works comprised in the DEVELOPERS' SCOPE OF WORK.
- v. To pay cost of all the materials required for carrying out and complete all the works comprised in the DEVELOPERS' SCOPE OF WORK.
- vi. To pay wages of labour, direct and indirect, supervisory staff, technical staff, including statutory claims of ESI, PF, claims under the Workmen Compensation Act and the like.
- vii. To pay the water and electricity charges during the construction period viz., upto handing over possession of flats and villas to the institution/body of the flat purchasers.
- viii. To pay the contractors, sub-contractors and other agencies.
- ix. To pay the hire charges for the equipments, centering materials.
- x. To pay for the administration and site office expenses.

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to comply with the rules and regulations of the Government of India and the Government of the State of Karnataka and to comply with the rules and regulations of the Government of the State of Karnataka.

- vi. To pay and settle any claim of any labour or other related agencies for any damage caused during the course of carrying out the works comprised in the DEVELOPERS' SCOPE OF WORK.
- vii. To obtain other and further permissions / approvals / sanctions as may be required from all the concerned Authorities.
- viii. To obtain the Completion Certificate/Occupation Certificate in respect of the 'Project' on completion of the development and construction.
- ix. To keep the VENDORS fully indemnified for any deficiencies in execution/completion of the works comprised in the DEVELOPERS' SCOPE OF WORK or for any delays in execution not attributable to the VENDORS and against any claims resulting there from.
- x. On completion of the work, whether the sale of entire saleable area is complete or not, remove at their own cost from the SAID PROPERTY viz. the 'Project' all their machineries, workmen, materials, etc.
- xvi. And generally doing and/or executing all such acts, deeds and things as may be necessary for the completion of this development project as envisaged therein.

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8. Without in any way conflicting with and/or deviating from the provisions of clause-7 hereinafore, the specific duties, responsibilities of the respective Parties as stated herein, the Parties agree and confirm that in the interest of timely completion of the 'Project' as and when required, they would be co-operating with or helping each other to enable the affected Party to discharge their responsibilities and duties to the best of their ability. However such co-operation or help shall not discharge the affected Party from any liability towards the other Parties or other claimants under this Agreement.
9. The DEVELOPERS shall pay to the VENDORS a sum of Rs. 2.21 Crores (Rupees Two Crores Twenty One Lakhs only) as and by way of non-interest bearing refundable deposit which shall be refunded by the VENDORS to the DEVELOPERS on pro-rata basis i.e., at the rate of 15% from the revenue receipts by the VENDORS from the prospective flat/villa Purchasers.
10. The 42% of gross sale receipts received upon sale or upon execution of agreement of sale of any of the saleable areas in the 'Project' shall belong to the VENDORS as consideration for transfer of their proportionate ownership rights in the SAID PROPERTY viz. the 'Project' and 58% shall belong to the DEVELOPERS for the value of the execution of DEVELOPERS' SCOPE OF WORK.
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11. For the purpose of this Agreement, the Parties shall agree on the consideration mentioned in any order or any other document for sale of the saleable areas in building, terrace, garden spaces, open & still, car parking, incidental charges, advertisement, sponsorships, etc. The VENDORS and the DEVELOPERS may from time to time fix the rates at which the saleable areas in the 'Project' shall be sold. The VENDORS and/or the DEVELOPERS shall be entitled to promote the sale of the saleable areas in the 'Project' at the rates mutually agreed by the Parties from time to time.

12. It is agreed that the Parties shall establish a bank account in the name of the 'Project' in any reputed bank for the purpose of depositing the gross sales proceed received from prospective buyers of the saleable area in the 'Project' and the said bank account shall be mandated to be operated jointly by authorized representative of the VENDORS and the DEVELOPERS.

14. It is specifically agreed by and between the Parties that all the gross sales receipt shall be deposited in the said bank account only and distributed as per their sharing ratio.

13. The said bank in which the account of the 'project' is opened, will be irrevocably mandated that:

a. Except in the event of this Agreement being terminated as provided in clause 16 herein below, out of every rupee deposited from sale of the

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saleable areas in the 'Project', the said bank shall automatically remit 54% of such balance amount to the designated account of the VENDORS, and 58% of such balance amount to the designated account of the DEVELOPERS.

- a. The aforesaid instructions of distribution of gross receipts by the said bank shall not be altered by any Party unless express written consent of the other Party hereto.

14. The Parties hereto shall be entitled to verify and/or scrutinize the agreement for sale executed with the prospective buyers for the sale of the saleable areas in the 'Project' and the details of gross receipt collection at all times.

15. It is hereby clarified and declared that each of the Parties hereto shall be entitled to carry on their respective business/occupation apart from the said 'Project' to be developed on part of the SAID PROPERTY viz. the 'Project'. However the DEVELOPERS' shall devote the necessary time and effort in the relation to the execution of the works comprised in the DEVELOPERS' SCOPE OF WORK.

16. The arrangement contemplated herein shall be confined to the 'Project' only and the DEVELOPERS obligation to complete the infrastructure work in the SAID PROPERTY viz. the 'Project' as contemplated in the DEVELOPERS' SCOPE OF WORK and the completion and sale of the saleable areas in the 'Project'.

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that:

- a. This Agreement is not intended to be an agreement to sell any part of the SAID PROPERTY by the VENDORS to the DEVELOPERS.
- b. This Agreement is not an agreement to share the profits and losses with reference to the tenancy of the Project so as to be regarded as a partnership between the Parties hereto.
- c. This Agreement also does not create any relationship of principal and agent or contractor between the Parties.
- d. The Parties hereto acknowledge, declare and confirm that this Agreement represents the entire Agreement between them regarding the subject matter hereof and any alterations, additions, modifications or deletions hereto shall not be valid and binding unless the same are reduced to writing and signed by or on behalf of both the Parties.
- e. This Agreement also does not create any association formed by the Parties and in fact each Party is doing its own business independent of each other and the rights and obligations of each Party is well defined, specific and mutually exclusive.
- f. The purpose of the arrangement contemplated in this Agreement is to ensure optimum realization for each Party independent from others from the respective activities it

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performance or obligations undertaken or in relation to the 'Project' developed on part of the SAID PROPERTY.

g. The Parties will receive their respective share of gross receipts under this Agreement for fulfilling their respective obligations under this Agreement. The costs and expenses incurred or to be incurred by any Party in relation to its obligations under this Agreement are their own costs and is of no consequence to the other Party except as otherwise stated expressly in this Agreement.

h. The liability to pay the income tax or any other taxes, cess, levies etc. on gross and/or net income earned or on costs incurred by each Party shall be their respective responsibility individually and any other Party shall in no way be involved or concerned about such liabilities of the other Parties. However the Parties shall ensure that they discharge all their respective obligations in respect of the matters referred in this clause so that the execution, completion and sale of the 'Project' is not affected in any manner.

i. Each of the Parties herein shall indemnify and keep indemnified, saved, defend and harmless the other Party from or against any liability arising from non-payment of any taxes, levies, cess etc. on gross and/or net income accruing from the 'Project' being implemented on the part of the SAID PROPERTY.



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the VENDORS and the PURCHASERS shall be held harmless and indemnified the other from and against any liability on account of their respective commercial dealing or income tax, sales tax and other liabilities of direct and/or indirect taxes.

18. The agreement for sale in respect of the individual flat and Villa unit to be executed **with the** purchasers shall be a Tripartite Agreement by and between the VENDORS, the DEVELOPERS and intending PURCHASERS.

19. It is specifically agreed that the absolute ownership and title of the SAID PROPERTY shall remain vested in the VENDORS till

- a. A conveyance deed is executed for transfer of the same or any part thereof
- b. Any agreement of sale is signed with the VENDORS as one of the Parties to sell any of the saleable areas in the 'Project' to any prospective buyer and full consideration for the same has been received from such buyer, in that case only that proportion which the saleable areas so sold bears to the total saleable area in the SAID PROPERTY shall be deemed to have been transferred from the VENDORS but without prejudice to the VENDORS' right to deal with the remaining area in the SAID PROPERTY devoid of any interference by the prospective buyer/s or the other Parties to this Agreement

(Handwritten signatures and initials)

- c. If the Floor Space Index (FSI) is increased in relation to the SAID PROPERTY or any part thereof, the entire benefit of the same shall belong to the VENDORS exclusively. However if such increase in FSI relates to area of the SAID PROPERTY comprised in the 'Project', and the development of additional FSI is carried out by the DEVELOPERS as additional scope of the DEVELOPERS' SCOPE OF WORK, the gross receipts from sale of the saleable areas representing such additional FSI shall also be shared in the same manner as contemplated in Clause 10 of this Agreement.

20. Subject to Clause 19 above, the Parties agree as under:

- a. The VENDORS undertake to divest their title and give the ultimate possession of the land comprised in the 'Project' to the buyers of the saleable areas including open space in the "Project" or to any society/association or any other entity formed for taking over the entire "Project" complex, as the case may be.
- b. Simultaneously the DEVELOPERS agree to hand over the possession of the saleable areas and common areas constructed by them as part of development of the 'Project' to the buyers of the saleable areas in the 'Project' or to any society/association or any other entity formed for



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...may be ...

4. Provided however the Parties shall not be obliged to perform their obligations under this clause and they have respectively assigned the entire area of consideration due on the respective laport of the salable areas in the 'Project'.

21. It is hereby specifically understood and agreed between the Parties hereto that the DEVELOPERS shall indemnify the VENDORS for any monetary and legal consequences arising out of any relationship contractual or otherwise entered into between the DEVELOPERS and any third party/agency and/or in respect of losses caused due to actions, claims, damages, compensation or costs, charges and compensation or costs, charges and expenses arising out of any accident or injury sustained by any workman.

22. This Agreement hereto by and between the Parties as mutually agreed by and between them shall or come to an end or shall be deemed to have been terminated upon:

- a. On completion of the works comprised in DEVELOPERS' SCOPE OF WORK as also the completion of the 'Project' in all respects.
- b. After all the saleable areas comprised in the 'Project' have been sold and/or Parties have mutually divided the balance unsold saleable areas amongst themselves as its prospective buyers.

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All the amounts receivable from the prospective buyers thereof have been received and distributed in the manner set out herein; and

d. Final accounts as envisaged hereinabove are settled between the Parties hereto.

23. The Parties hereto agree and record that they shall from time to time hold site meetings to review the progress of the work as per the mutually decided schedule and review the terms of this Agreement. It is agreed and confirmed that any change or modification shall be rendered in writing in the form of supplementary indenture hereto and not otherwise

24. The DEVELOPERS shall complete the development and construction of all works comprised in DEVELOPERS' SCOPE OF WORK within a period of 24 months and/or within extended mutual agreed period from signing of this Agreement subject to force majeure not in the reasonable control of the DEVELOPERS inter-alia including non availability of any building materials or on account of riots, strikes, civil commotion, lock-outs, earthquake, fire, accident or act of God and prohibitory order or injunction or directive of any Government Tribunal, Quasi-tribunal, local or public body or authority or competent authority or any Act, Ordinance, Statutes, Rules, Regulations, Bye-laws, Notifications by Government (State and Central) or Municipal or other Local Bodies or Competent Authorities PROVIDED THAT if any of the above contingencies shall adversely affect the 'Project', then in that case the period shall be further

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...and further extension of the time...

25. Any notice to be given by the Parties to the other shall be deemed to have been given by sending a registered post acknowledgement duly sent addressed to the Party with copy to other Party at the address mentioned at the beginning of this Agreement for the said Parties.

26. This Agreement represents all the understandings between the Parties and unless the same is varied in writing signed by all the Parties, this Agreement shall be final and binding.

27. All disputes and differences whatsoever arising out of or touching these presents or the construction, interpretation or application thereof or anything therein contained including the performance of the respective obligations of each of the Parties hereto during the subsistence of this Agreement, or any clause, matter or thing herein contained or the rights and liabilities of the Parties herein or any claims made against each other, shall be referred to arbitration. The VENDORS shall appoint one arbitrator and the DEVELOPERS shall appoint one arbitrator and the said two appointed arbitrators shall appoint an umpire or third arbitrator in accordance with the Arbitration and Conciliation Act, 1996 or any statutory modification or re-enactment in force for the time being. Such arbitration shall be conducted at Panjim Goa in English language. The award passed by the Arbitrators shall be final and conclusive and binding on the Parties.

[Signature]

[Signature]

18. This Agreement has been printed in two sets and both the sets have been executed simultaneously and both shall be considered as original and the VENDORS and the DEVELOPERS will have one of such Agreement. All out of pocket and misc. expenses etc. including stamp duty, registration fees and incidental charges of this Agreement required for the successful implementation of the 'Project' and for effective development of the said part of the SAID PROPERTY shall be borne by the DEVELOPERS alone and the other Party shall not be called upon to contribute any amount towards such expenses.

SCHEDULE-I

(Description of "the SAID PROPERTY")

All that property bearing Survey No.93 Sub Division 3 situated at Bambolim known as "BAILEM FONDIM", "SAVELI GALI" or "OHOR", admeasuring 26,825 m² approximately, forming part of a larger property totalling 97500 sq. mtrs or thereabout within the limits of Village Panchayat Curca, Bambolim & Talaulim, Taluka of Tigwadi, Registration Sub-District of Ilhas, District of North Goa and neither described in land registration office nor enrolled under matriz and bounded as follows:

North	: By Plot surveyed under no.103
South	: By plots surveyed under No.94
East	: By plot surveyed under No.93/1
West	: By the plot of G.M.C surveyed under nos.102/3 and 104

... to have been executed and handbooks and both shall be considered as original and the VENDORS and the DEVELOPERS will have one of such Agreement. All out of pocket and misc. expenses etc. including stamp duty, registration fees and incidental charges of this Agreement required for the successful implementation of the 'Project' and for effective development of the said part of the SAID PROPERTY shall be borne by the DEVELOPERS alone and the other Party shall not be called upon to contribute any amount towards such expenses.

SCHEDULE-I

(Description of "the SAID PROPERTY")

All that property bearing Survey No 93 Sub Division 3 situated at Bambolim known as "BAILIEM FONDIEM", "SAVELI GALT" or "OHOR", admeasuring 26,825 m² approximately, forming part of a larger property totalling 97500 sq. mtrs or thereabout within the limits of Village Panchayat Curca, Bambolim & Talaulim, Taluka of Tiswadi, Registration Sub-District of Ilhas, District of North Goa and neither described in land registration office nor enrolled under matrix and bounded as follows:

North : By Plot surveyed under no. 103
 South : By plots surveyed under No. 94
 East : By plot surveyed under No. 93/1
 West : By the plot of G.M.C. surveyed under
 nos. 102/3 and 104

SCHEDULE II

The Schedule of works comprised in DEVELOPERSS SCOPE OF WORK

1. Specifications/Amenities/Buildings/Flats

RCC:

1. Earthquake resistant structure

Flooring:

2. Vitrified high glass tiles 2'x2' in entire flat (Premium quality)
3. Anti-skid tiles in toilets and terraces (Premium quality)

Kitchen:

1. Granite kitchen platform, with stainless steel sink with drain board.
2. Glazed/Ceramic dado tiles 2' above platform
3. Provision for exhaust fan & Gas Leak Detector
4. Anti-cockroach trap for outlets

Doors/Windows:

1. Decorative moulded main door
2. Internal moulded Flush doors
3. Jam width door frame with polish
4. Powder coated / anodised aluminum door for balconies
5. 2/3 track powder coated/anodised aluminum windows/louvers

Toilets:

1. Concealed plumbing with premium quality C.P. fittings
2. Designer glazed dado tiles on the walls
3. Single lever bathroom fixtures in bathrooms

[Handwritten signature]

4. Wall mounted E.H.W. in kitchen
5. Corner washbasins
6. Granite door frames
7. Mirror

Electrification:

1. Corroded copper wiring with circuit breakers
2. Cable and telephone points in living room and master bedroom
3. AC. Points in bedrooms
4. Premium quality switches (ISO marked)
5. Shuttered plug socket to avoid accidental contact

POP:

1. POP / Gypsum / Cement Plaster treatment in entire flat

Painting:

2. Superior wall finish full washable emulsion
3. Textured Paint finishes on the external walls

General amenities for the building:

1. Anti-termite treatment
2. Decorative entrance lobby
3. Fully automatic lifts

2. Infrastructure - Specifications/Amenities

General:

1. Leveling & Filling as required
2. Compound Wall

[Handwritten signature]

1. Main gates with Security office
2. Internal roads with rain water drainage
3. Street Lighting
4. Garden and Landscaping
5. Common over head & underground water storage tanks
6. Furnished Society Office
7. Club House
8. Generator for lift & Staircase lights/Common areas
9. Transformer / Sub - station etc. for necessary supply of power to all the constructed areas.
10. Rain water harvesting system
11. Model Flat
12. Sewage Treatment Plant and intermediate septic tanks
13. Underground electrical cables, service cables, water lines, sewage lines and other services
14. Parking facilities on Stilts

SCHEDULE-III

LIST OF DOCUMENTS EVIDENCING THE TITLE OF THE
VENDORS

Part I & XIV of Record of Rights in respect of property surveyed under Survey No. 93/3 of Village Bambodun, Taluka Fawadi, Goa

Deed of Sale dated 25.04.2006 registered in the office of the Sub Registrar of Ilhas Goa under No.1239 at pages 388 to 408, Book-1, volume 1634 dated 03.05.2006 in respect of property surveyed under Survey No. 93/3

4

PRODUCED BY AN AUTODESK EDUCATIONAL PRODUCT

PRODUCED BY AN AUTODESK EDUCATIONAL PRODUCT

road of 103 access

ANNEXURE-I

Plan

SECTOR 3

area 1745.01

SECTOR 2

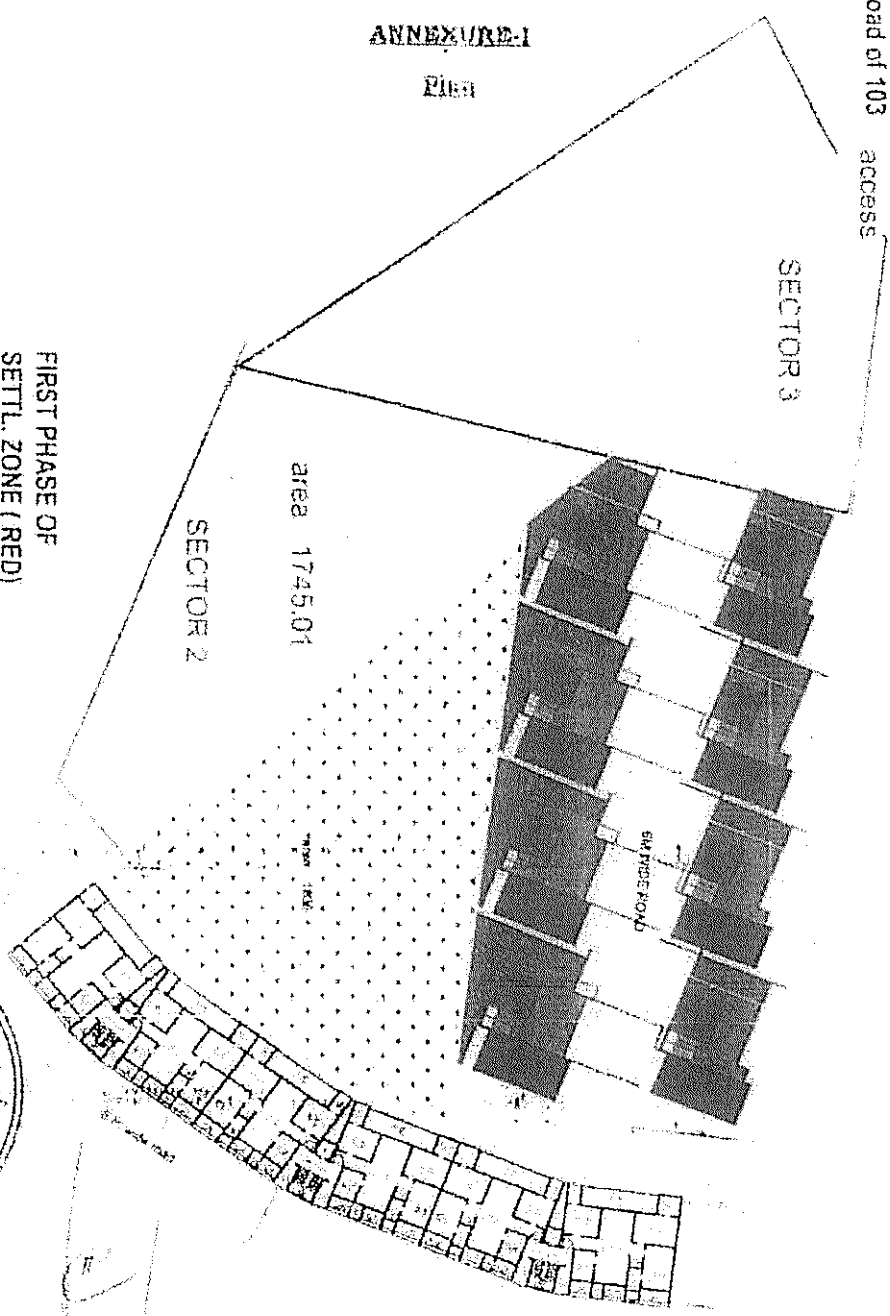
SHADE POOL

SECTOR 1

access

FIRST PHASE OF
SETTL. ZONE (RED)

ROOF PLAN



ANNEXURE II

Nos. of Buildings/Flats

Building No.	No. of Flats/Units
1	5
2	6
3	8
4	5
5	5

#

ANNEXURE IIIPermissions/Sanctions/NOC's/License

- 1 Office of the Collector, North Goa District, Panaji - Goa
Vide conversion sanad no RH/CNV/TIS/135/2008 Dated
16.12.2011
- 2 The Town Planning, Town and Country Planning
Department, Tiswadi Panaji Goa vide permission No.
TIS/7554/BAM/TCP/13/377 Dated 27.02.2013
- 3 Directorate of Health Services, Urban Health Centre,
Panaji - Goa vide NOC No. UHCP/DHS/NOC/12-13/3557
Dated 13.03.2013
- 4 Village Panchayat of Curca, Bambolim and Talaulim,
Tiswadi Taluka - Goa vide construction license no
VP/CBT/2013-14/CONST/88 Dated 16.04.2013



ad. Application dated Nil, from Mr. Pascoal Trindade, C.O. Bamlolim, Tiswadi Taluka.

**SANAD
SCHEDULE II**

1. Sec Rule 7 of the Goa Daman and Diu Land Revenue (Conversion of use of land and non-agricultural Assessment) Rules, 1969:

Whereas an application has been made to the Collector of North Goa (hereinafter referred to as the Collector) which expression shall include any officer whom the Collector shall appoint to exercise and perform his powers and duties under this grant) under section 32 of the Goa, Daman and Diu Land Revenue Code, 1968 (hereinafter referred to as the said Code which expression shall, where the context so admits, include the rules and orders thereunder) Mr. Pascoal Trindade, being the occupants of the plot registered under Survey No. 93/3(Part) known as: Situated at village Bamlolim, Tiswadi Taluka registered under Survey No. 93/3(Part) (hereinafter referred to as "the applicants, which expression shall, where the context so admits include his/her heirs, executors, administrators and assigns) for the permission to use the plot of land hereinafter referred to as the "said plot" described in the Appendix I hereto, forming a part Survey No. 93/3(Part) measuring 10000 Square Metres for the same a little more or less for the purpose of Residential Use.

Now, this is to certify that the permission to use for the said plot is hereby granted, subject to the provisions of the said Code, and rules thereunder, and on the following conditions, namely:

1. Levelling and clearing of the land - The applicants shall be bound to level and clear the land sufficiently to render suitable for the particular non-agricultural purpose for which the permission is granted to prevent insanitary conditions.

2. Assessment - The Applicants shall pay the non-agricultural assessment when fixed by the Collector under the said Code and rules thereunder with effect from the date of this sanad.

3. Use - The applicants shall not use the said land and building erected or to be erected thereon for any purpose other than Residential use, without the previous sanction of the Collector.

4. Liability for rates - The applicants shall pay all taxes, rates and cesses leviable on the said land.

5. Penalty clause - (a) if the applicants contravenes any of the foregoing conditions the Collector may without prejudice to any other penalty to which the applicants may be liable under the provisions of the said Code continue the said plot in the occupation of the applicant off payment of such fine and amount as he may direct.

(b) Notwithstanding anything contained in sub-clause (a) it shall be lawful for the Collector to direct removal or alteration of any building or structure erected or used contrary to the provisions of this grant within such time as specified in that behalf by the Collector, and on such removal or alteration not being carried out and recover the cost of carrying out the same from the applicant as an arrears of land revenue.

(c) If the Information, if any, furnished by the applicant for obtaining the Sanad is found to be false at later stage, the Sanad issued shall be liable to be withdrawn without prejudice to the legal action that may be taken against the applicant.

(d) If any dispute arises with respect to the ownership of the land, the Sanad granted shall stand void and the Construction/Development carried out shall be at the cost and risk of the applicants.

(e) The necessary road widening set-back to be maintained before any development in the land.

(f) Traditional access passing through the plot, if any, shall be maintained.

(g) No trees shall be cut except with prior permission of the competent authority.

Given

11/3/98

OF LAND AND REVENUE DEPARTMENT.

APPENDIX - I

Length and Breadth		Total Superficial Area	Forming (part of) Survey No. or Hissa No.	BOUNDARIES				Remarks
North to South	East to West			5				
1	2	3	4	North	South	East	West	6
110.00 Sq. mts	128.00 Sq. mts	10000 Sq. mts	Survey No. 93/3 (Part)	S. No. 103/1	S. No. 93/3 (Part)	S. No. 93/1	S. No. 93/3 (Part)	NIL.
Village: Bambolim Taluka: Tiswadi								

Remarks:-

- The applicant has paid conversion fees of Rs. 2,50,000/- (Rupees Two Lakh Fifty Thousand Only) vide receipt No. 11414 dated 09-12-2011.
- The Conversion has been approved by the Town Planner, Town and Country Planning Department, Mapusa vide his report No. TIS/6/25/TCP/09/TCR/233 dated 04/03/09.
- The development/construction in the plot shall be governed as per rules in force.
- The Dy. Conservator of Forest has given No objection for grant of Conversion vide report No. SCNV/TIS/DCFN/TECH/2009-10/107 DATED 07/05/2009.
- The Dy. Collector, Tiswadi, vide letter No. 15462/13/19/2011 dt. 21/10/2011, in witness whereof the COLLECTOR of North Goa district, has hereunto set his hand and the seal of his Office on behalf of the Administrator of Goa, Daman and Diu and Mr. Pascoal Trindade, here also hereunto set his hands this 16 day of December, 2011.

(Pascoal Trindade)
Applicant

(R. MIHIR VARDHAN)
COLLECTOR OF NORTH GOA

Signature and Designation of Witnesses

1. Manoj K. Phonsom
2. Bernardo R. Figueiredo

Complete address of Witness

1. 14/DR-557/E Talagao Tiswadi, Goa
2. Hat 128/A-113 Bambolim

We declare that Mr. Pascoal Trindade, who have signed this Sanad is, to our personal knowledge the person he/she represents himself to be, and that he/she has affixed his/her signature hereon in our presence.

1. Sm
2. V. 4

To:-

- The Town Planner, Town and Country Planning Department Tiswadi
- The Mamlatdar of Tiswadi Taluka.
- The Inspector of Survey and Land Records, Panaji
- The Sarpanch, Village Panchayat, Bambolim, Tiswadi Goa

OFFICE OF THE TOWN PLANNER
TOWN & COUNTRY PLANNING DEPT
2ND FLOOR, JAI RAM COMPLEX
TISWADI TALUKA OFFICE
MALA, PANAJI GOA

TECHNICAL CLEARANCE ORDER

Technical Clearance is hereby granted for carrying out the work of proposed construction of Residential Complex and Compound wall as per the enclosed approved plans in the property zoned as (VP-1) in Outline Development Plan of Panaji (old ODP) situated at Bambolim village of Tiswadi Taluka bearing Sy.No.93/3(P) with the following conditions:

1. Construction shall be strictly as per approved plans. No change shall be effected in the approved plans/approved built spaces without the prior permission of this authority.
2. The permission granted shall be revoked, if any information, plans, calculations, documents and any other accompaniments of the application are found incorrect or wrong at any stage after the grant of the permission and the applicant will not be entitled for any compensation.
3. The permission shall be revoked if found expedient to such an action under the provision of section 50 of the Goa Town & Country Planning Act 1974.
4. The development permission will not entitle the applicant for making/laying any claim on water and any other connection from the government of Goa.
5. The Developer/applicant should display a sign board of minimum size 1.00 mts x 0.50 mts with writing in black colour on a white background at the site, as required under the Regulations.
6. The applicant shall obtain conversion sanad under the Goa Land Revenue Code 1968, before the commencement of any development/construction as per the permission granted by this order.
7. The soak pit should not be located within a distance of 15.00 meters from any other existing well in the plot area/plan.
8. The commencement and the completion of the work shall be notified to this office in writing in appropriate forms.
9. Completion certificate has to be obtained from this office before applying for occupancy certificate from the licensing authority.
10. Storm water drain should be constructed along the boundary of the effected plot abutting to the road.
11. Adequate utility space for the dustbin, transformer etc, should be reserved within the plot area.
12. In case of any cutting of sloppy land or filling of low lying land, beyond permissible limits prior permission of the Chief Town Planner shall be obtained before the commencement of the works as per the provisions of section 17(A) of the Goa Town & Country Planning Act 1974.
13. In case of compound walls, the gates shall be open inwards only and traditional access, if any passing through the property shall not be blocked.

[Handwritten signature]

- 14) The Ownership of the property shall be verified by the licensing body before issuing of the licence.
- 15) All the set back as shown on the site plan shall be strictly maintained.
- 16) The balconies proposed should not be covered in any fashion, which may lead to access FAR.
- 17) Along the intersection of the streets, no compound wall shall be raised to a height of more than 0.90 mts from the crown of the road for length of 0.9mts from the intersection of the street. This distance being measured from the corner point of the plot.
- 18) Maximum height of the compound wall along the boundary other than that abutting on a street may be permitted upto a height of 1.80 mts and along the boundary abutting on a street upto a 1.50 mts only and may be closed type upto a height of 90 cm only and of open type above that height.
- 19) Proposed stilt for parking shall be strictly used for parking of vehicles only and shall not be closed at any point of time.
- 20) Collection and disposal of solid and liquid waste shall be implemented as per the project report submitted.
- 21) Solar water heating/solar energy capturing system shall be implemented as per the project report submitted.
- 22) Fire department clearance shall be obtained if required.
- 23) This NOC is issued with Government approval.
- 24) The applicant should complete the approach road as per the PWD specification before obtaining occupancy certificate.

THIS ORDER IS ISSUED WITH REFERENCE TO THE APPLICATION UNDER INWARD NO.6234 DATED 10/9/12 FROM Mr. Pascoal Trindade.

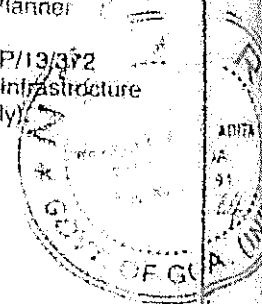
(THIS ORDER IS VALID FOR THREE YEARS FROM THE DATE OF ISSUE OF CONSTRUCTION LICENCE, PROVIDED THE CONSTRUCTION LICENCE IS ISSUED WITHIN THE PERIOD OF THREE YEARS).

(Verilka Dagur)
Town Planner

NOTE: Pursuant to this office assessment order No. TIS/7544/BAM/TCP/13/372 dt. 27/2/13 the applicant vide challan No. 625 dt. 27/2/13 has paid the infrastructure tax of Rs. 9,08,100/- (Rupees Nine lakh Eight thousand One hundred only).

To,
Mr. Pascoal Trindade,
Dona Paula,
Panaji-Goa.
Copy to:

The Secretary,
Office of the village Panchayat,
Curca, Bambolim & Talaulim,
Tiswadi Goa.



Government of India
 Directorate of Health Services
 Urban Health Centre, Poram

NO OBJECTION CERTIFICATE

These are to be filled by representative having inspected the construction of a Residential Complex & Compound wall below the Survey No 9VA(P) of Bamhodi village, Distt. B. for the purpose of construction in the vicinity of the above.

Approximate No. of persons =

No. of units for residential purpose = 76

No. of units for commercial purpose = 00

Total = 76

No. of the Sewerage line for the above person

No. of persons	L	H	Net
600			

Whether the Sewerage line has been shown on the plan & if so, which side

Yes. South

Whether the Sewerage line is adequate to the above units/persons and if not what should be done

Yes

Distance of the Sewerage line from any drinking water well

More than 20 meter

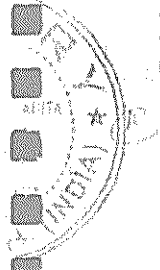
Whether the drains in the complex have been properly shown to discharge rain water

Yes

Whether there is any possibility of contaminating water in the nearby wells due to construction of septic tank and soak pit

NA

[Handwritten signature]



This NOC is issued on the condition that the applicant and/or builder shall observe the following requirements:

1. The SEP should not be located within a distance of 2000 meters from any other existing well in the plot area plan.
2. All the laborers employed in the construction activity shall possess valid Health Cards and the same shall be renewed every three months. NO laborers shall be engaged by the Builder/contractor unless he/she has a valid Health Card.
3. The NOC shall be revoked if the construction of the Septic tank, soak pit and drainage system of the premises are not as per the approved plan.
4. The applicant shall construct a separate soak pit in order to absorb the sewage water from the kitchen and from other non-sewage resources.
5. Accumulation of water shall be prevented in pits in and around the site so as to avoid the breeding of mosquitoes.
6. The builder/contractor shall take adequate anti-dust measures at the construction site in consultation with the Health Officer/Medical Officer or a Sanitary Inspector.
7. NOC from the authority shall be obtained before obtaining the Occupancy Certificate.
8. The sanitary orders have to be provided to all laborers residing on the construction site.
9. The NOC is liable to be withdrawn if the conditions stipulated above are not complied with or if it is established that the NOC has been obtained using fraudulent means.
10. Construction board with details should be displayed at the construction site.

Yours faithfully,

(Dr. Mangala Tantiya)
Health Officer
Urban Health Centre, Panaji

Cc:
Shri Pascoal Trimbade,
Donor, Dona Paula, Panaji Goa.

Copy to: 1. The Director, Directorate of Health Services, Chhatrapati, Panaji. For information.
2. The Secretary, V.P. St. Cures Hospital & Laboratory Goa.
3. The Medical Officer, I.C. Primary Health Centre Colim.

APPENDIX C4

Village Panchayat Building LicenceVillage Panchayat Curca Bambolim & Talaulim, Tiswadi-Goa.CONSTRUCTION LICENCE

No. P/91/2014-14 dated 27/02/2014

Date: 26/02/2014

is hereby granted for carrying out the construction of the building complex on the plot of land as per the approved plan and conditions thereon (hereinafter referred to as 'the plan').

- a) As per the enclosed approval plan/plans in the property owned at (V/P) in the (V/P) and situated at **Bambolim** village/Town bearing Survey No. 117/3(P).
- b) The Objection Certificate issued by the Director of Health Services, Government of Goa vide No. DHO/P/DHS/ROC/12-13/3557 dt. 13/03/2014 from conditions 1 to 10.
- c) The Town Planner, Town & Country Planning Department, Tiswadi, Panaji, Goa vide No. Tis/7554/BAM/TCP/13/377 dated 27/02/2014 from conditions 1 to 24.
1. The applicant shall notify the Panchayat for giving the alignment of the building.
2. The construction should maintain the minimum prescribed horizontal and vertical clearance from any overhead electrical line passing adjacent to the construction.
3. All RCC/Structural works shall be designed and supervised by the Engineer who has signed the Structural Liability Certificate submitted to the Panchayat.
4. No material for construction or earth from excavations or any other construction material shall be stacked on the Public road.
5. The Building should not be occupied unless the Occupancy Certificate is obtained from the Panchayat.
6. The Construction licence shall be revoked if the construction work is not executed as per the approved plans and the statement therein and whenever there is any false statement or misrepresentation of any material passed, approved or shown in the application on which the permit was based.
7. The applicant should construct a separate soak pit in order to discharge in the village water.
8. Any soak pit should be constructed at a minimum distance of 15 meters away from any well.
9. The ventilation pipe of the septic tank should be provided with a mosquito net.
10. The Applicant should connect the pipeline from their latrine/WC's to the sewerage line at their own cost, when the sewerage line is commissioned.
11. The Applicant should fix a board at a prominent place whenever the construction is started including the number, the date and the authority for which the licence for development work has been granted.
12. All the building material and other rubbish should be cleared from the construction site before applying for the Occupancy certificate.
13. Water storage tanks shall be provided with mosquito proof lids and over flow pipes. The tanks should be provided with access ladders wherever necessary.
14. The drains surrounding the plot if any should be constructed with RCC and should be covered with removable RCC slabs of sufficient thickness.
15. The applicant should gift the road widening area to the Village Panchayat before applying for the Occupancy certificate, if the applicant has utilized the extra FAR in lieu of the road widening affecting the plot.
16. The applicant should plaster and paint the building internally as well as externally before applying for Occupancy certificate. Exposed brick/laterite/concrete/stone/ashlars masonry finish to building will also be accepted.



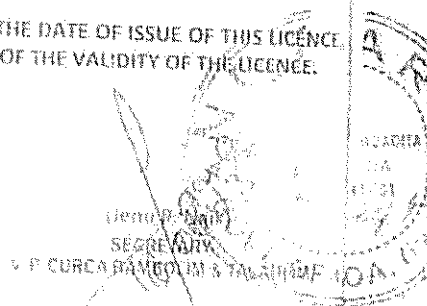
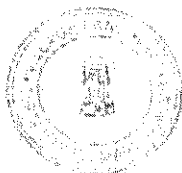
Date: 27/02/2014

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17. The applicant should provide a dustbin at a convenient place accessible for the Municipality vehicle for collection of garbage.
18. Road widening area shall be adjusted to the existing road level before applying for occupancy certificate.
19. Garbage and Parking area shown in the approved plan shall be strictly used for parking purpose only and should be easily accessible to vehicles. No commercial activities shall be allowed in these areas.
20. Access up to the entrance of the building is to be paved and is provided with drainage facilities.
21. Space for parking of vehicles is clearly demarcated on the ground.
22. No Restaurants/Bars will be permitted in the shops unless a separate sink pit is provided besides conforming to the rules in force.
23. No commercial activities will be permitted in the shops unless a separate permission is obtained from this Panchayat.
24. All Temporary sheds/Existing buildings shown to be demolished in the plan are demolished before applying for Occupancy certificate.
25. Fire Escape staircase, if applicable shall be constructed as indicated in the approved plans.
26. All internal courtyards should be provided with drainage outlet.
27. The applicant should maintain all existing natural drains in the plot and should not block them at any stage.
28. No sink pit or other structure should come in the road widening area.
29. The plot boundary should be cordoned off by continuous sheet fencing either of wood or metal during the construction period.
30. The construction of compound wall should not obstruct any pathway or any public access. The applicant shall make necessary arrangement for smooth flow of rain water by keeping adequate opening in the compound wall for all purpose.
31. No gates shall open outwards on to the road.
32. The construction of the compound wall should be as per the approved plan. The applicant shall inform this Panchayat after the completion of the compound wall.
33. Drinking water well should be 15 meters away from any sink pit.

The Construction licence is issued as per the Resolution No. 5(1) held on 12/04/2014 in Panchayat meeting and Construction licence fees to the tune of Rs. 2,50,200/- is collected with Receipt No. 105/76 dt. 16/04/2014.

THIS LICENCE IS VALID FOR A PERIOD OF THREE YEARS FROM THE DATE OF ISSUE OF THIS LICENCE. RENEWAL IF REQUIRED SHALL BE APPLIED WITHIN THE PERIOD OF THE VALIDITY OF THE LICENCE.



To,
Mr. Pascoal Trindade,
Palluka Mansion,
Near White house,
Dona Paula, Tiswadi Goa

IN WITNESS WHEREOF, I have hereunto set my hand and seal of my office in the respective hands of the DAY MONTH AND YEAR HEREINAFTER MENTIONED

Signed sealed delivered by

Within named VENDOR 1

Of the First Part

Signature on production of
Driving license (held/issued)
Doc No. 2175336 31-11-1973

Mr. Pascoal Trindade

for self and as attorney of Mrs. Albertina Trindade

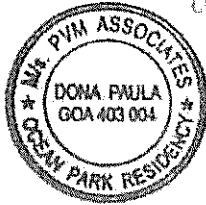
Signed sealed delivered by

Within named VENDOR 2

Of the First Part

Signature on production of
RAV CARD ADS PS 2078N
Govt ID No.

Mr. Vikram Shah



Signed sealed delivered by

Within named VENDOR 2

Of the First Part

Signature on production of
Driving license 611/01/2008
Doc 1013 dt 12/05-1976

Mr. Murlidhar Sadarangani

EXECUTED BEFORE ME
 WHICH I ATTEST

Signed sealed delivered by

Within named DEVELOPERS

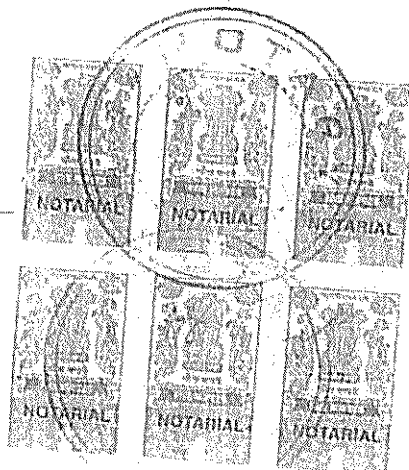
Of the Second Part

Signature on production of
Electric Commission 7/1/2014
Doc 1763 BSS
Doc 1763 BSS 21/11/07
Doc 25-04-2014

M/s. Kuval Projects Pvt Ltd

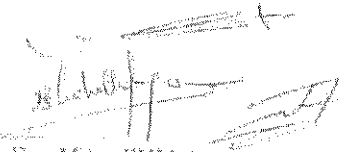
Witnesses:

1. MANUEL C. DIAS *Signature*
2. Joyce Pereira *Signature*



RECEIPT

Received a sum of Rs. 2,21,00,000/- (Rupees Two Crore Twenty One Lakhs Only) vide Cheque Dated 25.04.2014 drawn on IDFC Bank Limited, Taleigao Branch, bearing no.000001 from within named Developers M/s. Kunal Projects Pvt Ltd the receipt thereof is duly acknowledged by the withinnamed Member M/s. PVM Associates.



For M/s. PVM Associates